

Court No. - 39

Case :- WRIT - C No. - 6706 of 2016

Petitioner :- Dr. Umesh Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vishwambhar Nath

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

The petitioner has invoked the provisions of Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 and desires that the defective meter may be tested at an independent laboratory since an option was exercised by the petitioner at the time the defective meter was sealed on 3 November 2014.

It is stated that instead of acting on the option exercised by the petitioner, the Corporation on its own got the meter tested and the result of testing has been disputed by the petitioner.

It transpires from the records of the writ petition that for this relief the petitioner has submitted a representation dated 18 August 2015 before the Executive Engineer, Bareilly but till date no order has been passed nor the meter has been tested at an independent laboratory.

Sri Shivam Yadav, learned counsel appearing for the respondent-Corporation states that the representation filed by the petitioner shall be decided.

This petition is, accordingly, disposed of with a direction to the Executive Engineer, Bareilly to decide the representation filed by the petitioner in accordance with law expeditiously and preferably within a period of one month from the date a certified copy of this order is filed by the petitioner.

It is made clear that this Court has not adjudicated on the merits of the case, which shall be examined by the Executive Engineer, Bareilly in accordance with law.

Order Date :- 19.2.2016/NSC

(Mukhtar Ahmad, J.) (Dilip Gupta, J.)